

Complaint Report (CCRB)

CCRB Case No :	201407229	C/V Report Date :	Fri, 07/18/2014 12:28 PM
Complaint Type :	CCRB	Investigator :	Olas Carayannis
Complaint Made At :	CCRB	Ref. No	
Received Date (CCRB) :	Fri, 07/18/2014 12:28 PM	Mode :	Phone
Incident Date(s) :	Thu, 07/17/2014 3:30 PM		
Place of Occurrence:	[REDACTED]	Precinct:	120
Location :	Street/highway	Boro:	Staten Island
Reason for Initial Contact :	PD suspected C/V of violation/crime - street		
Charges:	Arrest - other violation/crime		

Complainant/Victim Details

Name:	[REDACTED]	Type:	Comp/Witness
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Injury Details:	<u>Type of Injury</u>	<u>Description</u>
	Death	[REDACTED] died due to his interaction with NYPD officers.

Name:	[REDACTED]	Type:	Victim
Address:	[REDACTED]		
Contacts:	[REDACTED]	[REDACTED]	
	[REDACTED]	[REDACTED]	
	[REDACTED]		
Gender:	[REDACTED]	Ethnicity:	[REDACTED]
Person Assisting:		Date of Birth:	[REDACTED]

Name:	[REDACTED]	Type:	Victim
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Address:

Contacts:

Gender:

Person Assisting:

Ethnicity:

Date of Birth:

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	Daniel Pantaleo	Subject Officer		White	120	Chokehold - (F) Substantiated (Charges)
POM	Daniel Pantaleo	Subject Officer		White	120	Other - (F) Substantiated (Charges)
POM	Daniel Pantaleo	Subject Officer		White	120	Threat of summons - (A) Exonerated
POM	Daniel Pantaleo	Subject Officer		White	120	Word - (D) Unsubstantiated
POM	Justin Damico	Subject Officer		White	120	Word - (D) Unsubstantiated
POM	Vincent Aguilo	Witness Officer		Hispanic	431	
SGT	Kizzy Adonis	Witness Officer		Black	120	
POM	Frank Verrico	Witness Officer		White	120	
POM	William Meems	Witness Officer		White	120	
POM	Christopher Maldonado	Witness Officer		Hispanic	120	
POM	Mark Ramos	Witness Officer		Asian	446	
POM	Craig Furlani	Witness Officer		White	446	

Initial Complaint Narrative

On July 17, 2014, between 1:00 p.m. and 2:00 p.m., on [REDACTED] in Staten Island, two young males began fighting nearby. [REDACTED] tried to stop the fight and save the young males' lives. Had [REDACTED] walked away and not addressed the fight, this would not have happened. Yet, because he was a good guy and tried to help someone out, this resulted. During this time, officers arrived, approached [REDACTED] directly and assumed that he was threatening the males. Three officers, PO1, PO2 and PO3, initially approached him. PO1 came from behind him, and PO2 and PO3 went to either side of him. The officers told [REDACTED] to get down and not to resist arrest, and handcuffs were out. He was not resisting arrest because he did not even know he was arrested. No officer read him his Miranda rights. [REDACTED] asked, "Why are you guys arresting me?" As he was known for selling cigarettes in the neighborhood, he said, "Why are you guys always messing with me when you see me? Today is not the day. Please don't arrest me. Please don't put those cuffs on me." More officers who included PO4 and PO5 arrived to the scene after five to seven minutes of PO1, PO2 and PO3 arriving. When asked how many officers were present, [REDACTED] said that the whole precinct was sent there including undercover officers, detectives and sergeants as if [REDACTED] had a gun. [REDACTED] noted that the stationhouse is not far from the incident location. The first thing PO1 did was come behind him and put a nightstick under [REDACTED] and on his neck to choke him, for which there was no need and demonstrated immediate discrimination. The officers tried to get him to calm down because he did not know initially that someone was in back of him. He was only saying that he could not breathe. The officers did not care and were not listening to him. [REDACTED] mentioned that an unidentified "we" knew that he was asthmatic and had heart problems. At some point after the officers' arrival, the incident turned to something other than the one about the kids fighting, which the officers knew nothing about. The officers taunted, attacked, beat on and basically jumped [REDACTED]. The officers acted as if he was resisting arrest, when he was just trying to breathe and said, "I can't breathe." The situation became a free-for-all and the officers beat on [REDACTED] as if he was a piñata. There was a minor scuffle and the officers shuffled around him. PO1, PO2 and PO3 tried to pull [REDACTED] down. PO1 placed one cuff on one of his hands. PO4, who was more aggressive than PO1 and all the officers, then choked him from behind with his hands (he did not have a nightstick) and [REDACTED] eventually collapsed because he could not fight anymore. During this time, PO1, PO2 and PO3 held him down. PO4 kept choking him all the way to the ground. When the officers had him down on the ground, he could not breathe. He was face-down on the concrete, with one arm stretched out with his head on it, and one arm cuffed and behind his back. At this time, PO4 still had an arm around his neck, which is how he died. PO4 pushed and bashed his face into the concrete. He stopped talking and breathing. The officers continued to arrest him after he was dead. The officers turned him so that he was on his back and lying on the lap and in the arms of PO4. EMS was called and everyone who was next to him was kicked off. Everyone was told to move back. [REDACTED] said that she witnessed [REDACTED] get killed by officers when he was choked until he died and there was nothing anyone could do about it. The officers would not let anyone get near them and many were on him, so [REDACTED] could not see who was who. There was much hustling and bustling. The situation was overwhelming and happened very quickly, so [REDACTED] was unable to collect identification information for the officers. [REDACTED] said that while no one was particularly with her, she said that she would go to the location and provide the phone number to the CCRB to the witnesses who were protesting at the time of the call. She mentioned that everyone lives in the area. PO1 is a white male, 5'8" to 5'9" tall, 200 to 255 pounds, medium body build, blonde hair sticking up in a military crew cut, between 35 and 42 years old. He was dressed in uniform. No distinguishing features. PO4 is a white (uncertain about race detail) male, 5'2" to 5'3" tall, short in stature, 180 pounds (smaller than PO1), dark hair, between 32 and 38 (younger than PO1). He wore a black baseball cap, black sneakers, khaki camouflage ("camo") shorts and a green shirt. No distinguishing features. PO5 wore glasses and had tattoos. [REDACTED] described [REDACTED] as a friend of hers and a pillar of the community, which she would not know as anyone watching the news. She said that the media was reporting inaccurate facts about him. He was a father with children and a father to the community. She felt like New York State and Mayor de Blasio were trying to cover up what officers are doing to civilians and the situation was horrible. Officers are not really protecting civilians, but are actually killing them and they want them to be okay with this. This was the first time that the members of that Staten Island community witnessed police brutality. Officers are supposed to protect and are not supposed to kill. [REDACTED] wanted to ensure that justice was served so civilians would not feel like slaves in their communities. She expressed her sympathies for [REDACTED]'s wife and children.

Witness

Name of Witness:

Address:

Contacts:

Gender :

Ethnicity:

Date of Birth :

Name of Witness:		
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Gender :

Date of Birth :

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Ethnicity:

[REDACTED]

[REDACTED]